Supreme Court, U.S.
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(17)

No. 98-1036

IN THE

Supreme Court of the United States

OCTOBER TERM, 1998

STATE OF ILLINOIS,

Petitioner,

vs.

WILLIAM WARDLOW, aka SAM WARDLOW,

Respondent.

On Writ of Certiorari to the Supreme Court of Illinois

JOINT APPENDIX

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PETITION FOR WRIT OF CERTIORARI FILED DECEMBER 22, 1998
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CHRONOLOGICAL LIST OF RELEVANT DOCKET ENTRIES

September 10, 1995 – Complaint filed in the Circuit Court of Cook County charging Sam Wardlow with Unlawful Use of Weapon by a Felon.

September 11, 1995 – Preliminary hearing held. Finding of Probable Cause.

September 14, 1995 – Information filed in the Circuit Court of Cook County charging Sam Wardlow with two counts of Unlawful Use of Weapon by a Felon and two counts of Unlawful Use of Weapon.

October 11, 1995 – Motion to Suppress Physical Evidence filed by Sam Wardlow.

October 25, 1995 – Hearing held on Motion to Suppress Physical Evidence.

December 5, 1995 – Arguments heard on Motion to Suppress Physical Evidence. Motion denied. Bench trial. Finding of guilty. Sentencing.

December 19, 1995 – Notice of Appeal to Illinois Appellate Court filed by Sam Wardlow.

March 18, 1997 – Published opinion of the Illinois Appellate Court, First District, Second Division.

September 24, 1998 – Published opinion of the Illinois Supreme Court.

STATE OF ILLINOIS)
) SS:
COUNTY OF COOK)

IN THE CIRCUIT COURT OF COOK COUNTY
COUNTY DEPARTMENT-CRIMINAL DIVISION

THE PEOPLE OF THE	)	Indictment
STATE OF ILLINOIS	)	No. 95-CR-26952
	)	Before:
vs	)	JUDGE FRED G. SURIA
	)	Wednesday,
SAM WARDLOW	)	October 25, 1995.

Court having reconvened pursuant to adjournment.

APPEARANCES:

HON. JACK O'MALLEY,
State's Attorney of Cook County, by
MR. ROBERT HEILINGOETTER,
Assistant State's Attorney,
appeared for the People;

MS. RITA FRY,
Public Defender of Cook County, by
MS. IRENE CAVANAUGH,
Assistant Public Defender,
appeared for the defendant.

* * *

(p. A-3) THE CLERK:

The People of the State of Illinois versus Sam Wardlow.

(Defendant present.)

THE COURT: Any opening remarks petitioner wishes to make?

MS. CAVANAUGH: I have no opening statement to make.

THE COURT: Any opening remarks the state wishes to make?

MR. HEILINGOETTER: No, Judge.

THE COURT: This is a motion to quash arrest and suppress evidence?

MR. HEILINGOETTER: I believe just a motion to suppress evidence, correct.

MS. CAVANAUGH: Yes.

THE COURT: Petitioner may call their first witness.

MR. HEILINGOETTER: We have both Nolan and Harvey. Officer Nolan is present in court now. Officer Harvey stepped in the back.

THE COURT: Who do you wish to take the stand?

MS. CAVANAUGH: Officer Nolan.

(Witness sworn.)

(p. A-4) TIMOTHY NOLAN,

a witness called on behalf of the Petitioner, on the motion, having been first duly sworn, was examined and testified as follows:

DIRECT EXAMINATION

By Ms. Cavanaugh:

Q Would you state your name, please?

A Officer Timothy Nolan, N-o-l-a-n, Star 2558, assigned to the Special Operations Section of the Chicago Police Department.

Q Officer Nolan, were you a police officer on September 9, 1995?

A Yes, I was.

Q And where were you assigned on that date?

A Special Operations Section. That particular date I was assigned to the 11th District.

Q Were you working in uniform or plain clothes?

A Uniform.

Q Were you working with a partner?

A Yes, I was.

Q And who was your partner?

A Officer Harvey.

Q And were you driving a marked or an unmarked car?

(p. A-5) A I don't recall that. It changes from day to day.

Q Now, on September 9, 1995, in the vicinity of 4036 West Congress, did you see someone in the area that is in court today?

A Yes, I do.

Q And who is that?

A The subject to the right in the Department of Corrections khakis.

THE COURT: The identification by the witness of Sam Wardlow.

MS. CAVANAUGH: Q Thank you, your Honor. And do you now know his name to be Sam Wardlow, is that correct?

A Yes, I do.

Q Now, Officer, on that date, time, and place when you saw Mr. Wardlow on the street, was he violating any laws of the City of Chicago?

A Not at the time, no.

Q At that time when you first saw him, was he violating any laws of the State of Illinois?

A Not at that time, no.

Q How about any laws of the United States of America?

(p. A-6) A No.

Q When you saw Mr. Wardlow, what was he doing?

A He was looking in our direction and he began running.

Q He was looking in your direction, but you could not say for sure he was looking at you, is that correct?

A He was looking at us.

Q He was looking in your direction, however, right?

A Yes.

Q And at that time when he started running, now running is not against the law, is it?

A No, it's not.

Q So he was still not violating any laws that you know of at that time?

A No, he wasn't.

Q What did you do at that point, Officer?

A I began driving southbound down the street observing him running through the gangway and the alley southbound.

Q And did you catch up with Mr. Wardlow at some point?

A Yes, I did.

(p. A-7) Q And what happened when you did that?

A I placed a stop on him to conduct a field interview.

Q At that time did you announce your office?

A Pardon me?

Q At that time that you put the stop on him when you caught up with Mr. Wardlow, did you announce your office at that time?

A No, I didn't.

Q What did you do?

A I conducted a protective pat down for my own safety.

Q Before you did that pat down, did you ask Mr. Wardlow any questions?

A Not initially, no.

Q So you got out of your car and you did the protective pat down?

A Correct.

Q And did you find something on or about Mr. Wardlow's person?

A Yes, I did.

Q And what did you find?

A I discovered a revolver that was wrapped in a plastic bag under his arm.

(p. A-8) Q Was this a clear plastic bag?

A No, it wasn't.

Q It was a white opaque bag?

A Yes, it was.

Q And you could not see in that bag what was in that bag before you opened it or felt what was in that bag, could you?

A No, ma'am, I felt it. It appeared to be a weapon.

Q Right, but you could not see before you felt it?

A No.

Q And at that time did you place Mr. Wardlow under arrest?

A Yes, I did.

MS. CAVANAUGH: I have no further questions.

THE COURT: State?

CROSS EXAMINATION

By Mr. Heilingoetter:

Q Officer, where was the defendant when you first observed him on that date?

A He was standing approximately in front of 4035 West Van Buren.

Q And let me ask you, Officer, why was it that

(p. A-9) you went to that location on that date and time?

A It's one of the areas in the 11th District that's high narcotics traffic.

Q How many partners or police officers went to that location along with you on that date and time?

A Including my partner and myself, there were eight of us altogether.

Q And eight police officers, how many different police cars?

A Four.

Q And you stated you and your partner, Officer Harvey, were in your vehicle?

A Yes, we were. We were the last ones.

Q What was the purpose for having four cars all converge on that same location on that date and time?

A Because of the large amount of people. Normally in these different areas there's an enormous amount of people, sometimes lookouts, customers.

Q And it was your assignment on that day, you and the other four police cars that converged on this area, to try to investigate narcctics sales in that area?

A Yes, sir.

Q Did all the four police cars arrive on the

(p. A-10) scene at the same time?

A Yes, we were all caravaning eastbound down Van Buren.

Q And was it at that time that you were caravaning down Van Buren that you first observed the defendant you have identified in court?

A Yes, sir.

Q And what specifically did he do when you first saw him?

A He looked in our direction and began fleeing.

Q And when he began to flee, what did you do?

A I also turned southbound going towards Congress, observing him as he was running southbound.

Q Did you observe anything in his hands at that time?

A No, sir. It was a white bag under his arm.

Q Was it under his arm the whole time as he ran?

A Well, from the times that I saw him, yes, it was.

Q And you were eventually able to corner him in the vicinity of 4036 West Congress?

A Yes, sir, on the street.

Q How was it that you were able to stop him at that location?

(p. A-11) A He ran right towards us.

Q And what happened at that time?

A I exited my car and did a protective pat down.

Q And you stated that when you exited your car you were dressed in police uniform similar to how you're dressed today?

A Yes, sir.

Q Meaning that you had your badge and your name tag and your police—Chicago Police Department patch on your arm?

A I was in full uniform, yes, sir.

Q And as you approached him, you did a protective search which included the bag that you saw under his arm?

A Yes, sir, I squeezed the bag.

Q And when you squeezed the bag, what did you feel?

A I felt a hard object that had a similar shape to a revolver or a gun. It was very heavy.

Q How long have you been a Chicago police officer?

A Almost nine years.

Q And in the course of your nine years, are you familiar with the different size and shapes of

(p. A12) handguns?

A Yes, sir.

Q And when you felt this bag from the outside, what did you believe it to be?

A I believed it to be a weapon.

Q Will you describe this plastic bag that this—that you recovered the gun in?

A It was a white opaque bag, not as thin as a grocery bag, more like a heavy like a Gap bag or a jean bag, you know, that stores would give out, a heavier plastic bag.

Q Were there any other items inside the bag that you were able to feel other than the gun?

A No, sir, there was nothing else in there.

Q And after you felt that from the outside of the bag and believed it to be a gun, what did you do?

A I looked inside the bag and found it to be that.

Q It was in fact a .38 caliber handgun?

A Yes, sir.

Q Colt model. Did you check the gun to see whether or not it was loaded?

A Yes, sir.

Q And it in fact had five live rounds, isn't this

(p. A-13) correct?

A Yes, sir, it did.

Q In your experience, Officer, of investigating narcotics areas in which narcotics are sold, is it common for there to be weapons in the near vicinity?

A Yes.

MS. CAVANAUGH: Objection.

THE COURT: I'll let the witness answer.

THE WITNESS: Yes, sir, it is common.

MR. HEILINGOETTER: Q Is that something that you and your fellow officers contemplated as you approached on that specific scene on that date and time?

A Yes, sir.

MR. HEILINGOETTER: Nothing further.

THE COURT: Anything further?

MS. CAVANAUGH: No more.

THE COURT: Thank you.

(Witness excused.)

THE COURT: Petitioner, do you wish to offer any additional evidence?

MS. CAVANAUGH: No other additional evidence.

THE COURT: Does the state respondent wish to offer any additional evidence?

(p. A14) MR. HEILINGOETTER: No, Judge.

THE COURT: Both sides having rested, petitioner may argue.

* * * *

(p. A17) THE COURT: It is unfortunate we in America don't realize the rights we're giving up in order to protect ourselves from this very kind of situation whereby guns and narcotics, being the nature that they are, can be so secreted away and the only way to obtain them is by the roundups and pat downs of fellow citizens.

This affects the rights of all of us. On the other hand, if we wish to get the guns and the drugs off, there's no other way to do it and that's the way the police were attempting to do it in this case.

It is, however, my humble judgment the law does not allow it at this point, so if the state feels they have any cases that would show otherwise, I'll be glad to continue it to 12/6 and we'll see where we

(p. A18) are.

MR. HEILINGOETTER: Judge, I would like that opportunity.

THE COURT: By agreement, 12/6.

MR. HEILINGOETTER: Judge, did the court actually make a ruling on the motion?

THE COURT: I'll reserve my ruling.

(A continuance was taken to December 6, 1995.)

STATE OF ILLINOIS)
) SS:
COUNTY OF COOK)

IN THE CIRCUIT COURT OF COOK COUNTY
COUNTY DEPARTMENT-CRIMINAL DIVISION

THE PEOPLE OF THE STATE OF ILLINOIS	)	Indictment No. 95-CR-26952
	)	Before:
vs	)	JUDGE FRED G. SURIA
SAM WARDLOW	)	December 6, 1995

Court having reconvened pursuant to adjournment.

APPEARANCES:

HON. JACK O'MALLEY,
State's Attorney of Cook County, by
MS. MARIA BURNETT &
MR. ROBERT HEILINGOETTER,
Assistant State's Attorneys,
appeared for the People;

MS. RITA FRY,
Public Defender of Cook County, by
MS. IRENE CAVANAUGH,
Assistant Public Defender,
appeared for the defendant.

* * *

(p. B12) THE COURT:

That is what they are saying.

You have to take it in connection with the appropriate sections and they relate the appropriate sections to

this case where the police already before they make the stop have their specific and articulable facts. The police in Mr. Wardlow's case had nothing.

It is common knowledge police do know of the area where drugs are being sold. They do have knowledge of general areas where contraband, including weapons, are being carried.

I appreciate we don't have a general warrant situation. There's no warrant at all as a

(p. B13) matter of fact in this case. I do believe we are attempting to control what's happening on our streets. There's no alternative but to suggest police do have a right to drive up to an area, in this case the defendant looking in the direction of the police officers. Almost anybody can identify a police car marked or obviously unmarked just as obviously.

And, this was a white officer as well in a black area. Under all at attendant circumstances when the defendant realized the circumstances for which they are there does in fact flee. I think they do have a right to stop and question and in doing so have a right to protect themselves by a patdown.

I would respectfully deny the defense motion to suppress the facts. I will note your objection.

MS. CAVANAUGH: I think it's clearly against the law, your Honor.

THE COURT: I understand.

MS. CAVANAUGH: I would ask—

THE COURT: A shame we have to do this, but I know no other alternative.

MS. CAVANAUGH: I don't think going against the Constitution is a proper alternative.

(p. B14) THE COURT: It's within the framework of the Constitution and always been observed in light of what's going on in fact.

MS. CAVANAUGH: I think just because it's practice doesn't make it right.

THE COURT: I agree. Practice does not make it right. I also agree there's urgency on the streets and we are not—this is one method of doing so of trying to confront that. And, once a person flees after having looked in the direction of the officer there's reasonable—there's reason to think there's a problem, they have a right to make inquiry.

MS. CAVANAUGH: Without nothing more specific than that there is no right. That's a police state.

THE COURT: They were going to an area where there was in fact drugs being sold. We know—

MS. CAVANAUGH: That's my neighborhood, too. If I walk away from the police they can stop me?

THE COURT: I think they ought to stop and do so if you were to run.

Be that as it may we are in disagreement.

Opinion of the Illinois Supreme Court
Docket No. 83061-Agenda 7-May 1998.
THE PEOPLE OF THE STATE OF ILLINOIS, Appellant, v. SAM WARDLOW, Appellee.

JUSTICE HARRISON delivered the opinion of the court:

Defendant, Sam Wardlow, was convicted of unlawful use of a weapon by a felon (720 ILCS 5/24-1.1(a) (West 1994)) following a stipulated bench trial in Cook County and was sentenced to a term of two years' imprisonment. On appeal, the appellate court reversed defendant's conviction, finding that defendant's motion to suppress evidence should have been granted because the revolver seized from him was discovered as a result of an improper investigatory stop. 287 Ill. App. 3d 367. We allowed the State's petition for leave to appeal. 166 Ill. 2d R. 315(a); 145 Ill. 2d R. 604(a)(2).

At the hearing on defendant's motion to suppress, Officer Timothy Nolan testified that on September 9, 1995, he and his partner, Officer Harvey, were assigned to the special operations section of the Chicago police department. On that date, Nolan and Harvey were among eight officers in four cars travelling eastbound on West Van Buren Street with the purpose of investigating narcotics sales in that area. Nolan stated that he was working in uniform, but did not recall whether the police car he drove, the last in the "caravan," was marked or unmarked.

Nolan testified that as he was driving, he observed defendant standing in front of 4035 West Van Buren. Defendant, who did not appear to be violating any laws,

looked in the officers' direction and then fled. Nolan turned his vehicle southbound toward Congress Avenue, continuing to observe defendant, who ran southbound through a gangway and then through an alley. Nolan stated that defendant, who was carrying a white opaque bag under his arm, was cornered in the vicinity of 4036 West Congress when he "ran right towards us."

Nolan exited his car and stopped defendant. Without announcing his office or asking any questions, he conducted a protective pat-down search of defendant. Nolan testified that he could not see inside the bag defendant was carrying so he "squeezed" the bag and felt a very heavy, hard object "that had a similar shape to a revolver or a gun." Believing the object to be a weapon, Nolan opened the bag and found a .38-caliber handgun containing five live rounds of ammunition. Nolan then placed defendant under arrest.[1]

Responding to the State's question as to why he "went to that location on that date and time," Nolan answered that it was "one of the areas in the 11th District that's high narcotics traffic." Nolan further testified that, based upon his experience in investigating areas in which narcotics were sold, it was common for there to be weapons "in the near vicinity" and he considered that fact as he approached "that specific scene." After hearing arguments by the parties, the trial court denied defendant's motion to suppress.

Generally, a trial court's ruling on a motion to suppress evidence is subject to reversal only if manifestly

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[1] While no testimony was presented as to the precise time of defendant's arrest, the record contains Nolan's arrest report, which indicates a time of 12:15 p.m.

erroneous. *People v. Dilworth*, 169 Ill. 2d 195, 201 (1996). This clearly erroneous or manifestly erroneous test is based on the understanding that suppression motions usually raise mixed questions of law and fact. See *People v. Frazier*, 248 Ill. App. 3d 6, 12 (1993). However, where, as here, neither the facts nor the credibility of the witnesses is contested, the determination of whether there is reasonable suspicion warranting an investigatory stop is a legal question which a reviewing court may consider *de novo*. See *In re D.G.*, 144 Ill. 2d 404, 408-09 (1991); *People v. Foskey*, 136 Ill. 2d 66, 76 (1990); see also *People v. Besser*, 273 Ill. App. 3d 164, 167 (1995).

The fourth amendment to the United States Constitution guarantees the "right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures." U.S. Const., amend. IV. This provision applies to all seizures of the person, including seizures that involve only a brief detention short of traditional arrest. *United States v. Brignoni-Ponce*, 422 U.S. 873, 878, 45 L. Ed. 2d 607, 614, 95 S. Ct. 2574, 2578 (1975); *People v. Smithers*, 83 Ill. 2d 430, 433-34 (1980). In *Terry v. Ohio*, 392 U.S. 1, 20 L. Ed. 2d 889, 88 S. Ct. 1868 (1968), the United States Supreme Court held that the public's interest in effective law enforcement makes it reasonable to detain and question individuals under certain circumstances in which probable cause to arrest is lacking. However, in order to protect "the individual's right to personal security free from arbitrary interference by law officers" (*Brignoni-Ponce*, 422 U.S. at 878, 45 L. Ed. 2d at 615, 95 S. Ct at 2579), the *Terry* Court held that such limited investigatory stops are permissible only upon a reasonable suspicion based upon specific and articulable facts that the person has committed, or is about to commit, a crime. *Terry*, 392 U.S. at 21-22, 20 L. Ed. 2d at 906, 88 S. Ct. at 1880; *Smithers*, 83 Ill. 2d at 434.

This *Terry* standard has been codified in our Code of Criminal Procedure of 1963. *People v. Flowers*, 179 Ill. 2d 257, 262 (1997); *People v. Long*, 99 Ill. 2d 219, 228 (1983). Section 107-14 of the Code provides, in pertinent part: "A peace officer * * * may stop any person in a public place for a reasonable period of time when the officer reasonably infers from the circumstances that the person is committing, is about to commit or has committed an offense * * *." 725 ILCS 5/107-14 (West 1994). The same standard is applied in determining the propriety of an investigatory stop under article I, section 6, of the Illinois Constitution of 1970 (Ill. Const. 1970, art. I, §6). See *People v. Tisler*, 103 Ill. 2d 226, 242-43 (1984) (the protection against unreasonable searches and seizures under the Illinois Constitution is measured by the same standards as are used in defining the protections contained in the fourth amendment to the United States Constitution).

Turning to the case before us, defendant contended on direct appeal that the trial court erred in denying his motion to suppress because his presence in a high-crime area and flight from police were insufficient to justify his investigatory stop. The appellate court agreed, but found the record "simply too vague to support the inference that defendant was in a location with a high incidence of narcotics trafficking" and limited its holding accordingly. 287 Ill. App. 3d at 370-71. However, we believe Officer Nolan's uncontradicted and undisputed testimony, which was accepted by the trial court, was

sufficient to establish that the incident occurred in a high-crime area. See *Ornelas v. United States*, 517 U.S. 690, 699, 134 L. Ed. 2d 911, 920, 116 S. Ct. 1657, 1663 (1996) (as a general matter determinations of reasonable suspicion and probable cause should be reviewed de novo on appeal, but reviewing court should take care both to review findings of fact only for clear error and to give due weight to inferences drawn from those facts by judges and local law enforcement officers). Thus, the issue presented by this appeal is whether an individual's flight upon the approach of a police vehicle patrolling a high-crime area is sufficient to justify an investigative stop of the person. Defendant contends that such flight alone is insufficient to create a reasonable suspicion of involvement in criminal conduct. We agree.

A majority of jurisdictions addressing this issue have held that flight alone is insufficient to justify a *Terry* stop. See, e.g., *State v. Tucker*, 136 N.J. 158, 642 A.2d 401 (1994); *State v. Hicks*, 241 Neb. 357, 488 N.W.2d 359 (1992); *People v. Shabaz*, 424 Mich. 42, 378 N.W.2d 451 (1985); *People v. Aldridge*, 35 Cal. 3d 473, 674 P.2d 240, 198 Cal. Rptr. 538 (1984); *People v. Thomas*, 660 P.2d 1272 (Colo. 1983); *Watkins v. State*, 288 Md. 597, 420 A.2d 270 (1980). "Instead, courts require proof of some independently suspicious circumstance to corroborate the inference of a guilty conscience associated with flight at the sight of the police. [Citations.]" *Hicks*, 241 Neb. at 362-63, 488 N.W.2d at 363; see also *Tucker*, 136 N.J. at 169, 642 A.2d at 407 (for departure to take on the legal significance of flight, there must be some circumstances present and unexplained which, in conjunction with the leaving, reasonably justify an inference that it was done with a consciousness of guilt and pur-

suant to an effort to avoid an accusation based on that guilt).

In *Hicks*, the Nebraska Supreme Court examined a number of these "location plus evasion" cases and, in a well-reasoned opinion, concluded:

> "[A]llowing flight alone to justify an investigative stop would undercut the very values *Terry* sought to safeguard. *Terry* is based in part upon the proposition that the right to freedom from arbitrary governmental intrusion is as valuable on the street as it is in the home. Thus, while a police officer does not violate the Fourth Amendment by approaching an individual in a public place and asking if the person will answer some questions, neither is the person under any obligation to answer. *Florida v. Royer*, 460 U.S. 491, 103 S. Ct. 1319, 75 L. Ed. 2d 229 (1983). The person may decline to listen to the questions at all and simply go on his or her way. Id. If the option to 'move on' is chosen, the person 'may not be detained even momentarily without reasonable, objective grounds for doing so; and his refusal to listen or answer does not, without more, furnish those grounds.' 460 U.S. at 498.
>
> * * * Flight upon approach of a police officer may simply reflect the exercise-'at top speed'-of the person's constitutional right to '"move on."' *Shabaz*, 424 Mich. at 63, 378 N.W.2d at 460. *Terry* and *Royer* stand for the proposition that exercise of this constitutional right may not itself provide the basis for more intrusive police activity.
>
> * * *

> A prime concern underlying the *Terry* decision is protecting the right of law-abiding citizens to eschew interactions with the police. Authorizing the police to chase down and question all those who take flight upon their approach would undercut this important right and upset the balance struck in *Terry* between the individual's right to personal security and the public's interest in prevention of crime. We therefore join those jurisdictions holding that flight from a police officer is sufficient to justify an investigatory stop only when coupled with specific knowledge connecting the person to involvement in criminal conduct. [Citations.]" *Hicks*, 241 Neb. at 363-64, 488 N.W.2d at 363-64.

Although no Illinois court has specifically considered whether sudden flight from police in a high-crime area justifies a stop, we agree with the appellate court that "[i]n Illinois, neither a person's mere presence in an area where drugs are sold (*People v. Harper*, 237 Ill. App. 3d 202, 205, 603 N.E.2d 115 (1992)) nor sudden flight (*People v. Rivera*, 233 Ill. App. 3d 69, 77, 598 N.E.2d 423 (1992)) alone will justify a *Terry* stop." 287 Ill. App. 3d at 370; see also *People v. Fox*, 97 Ill. App. 3d 58 (1981) (driving away at approach of marked police vehicle not a justification for stop). Moreover, this court has recently emphasized the importance of protecting the freedom to engage in such harmless activities as "loafing, loitering, and nightwalking" and other personal liberties of citizens, including the right to travel, to locomotion, to freedom of movement, and to associate with others. *City of Chicago v. Morales*, 177 Ill. 2d 440, 459-60 (1997), cert. granted, ___ U.S. ___, 140 L. Ed. 2d 664, 118 S. Ct. 15.

In *Morales*, we found that a City of Chicago ordinance which prohibited certain individuals from loitering in public places violated substantive due process because it unreasonably infringed on "the personal liberty of being able to freely walk the streets and associate with friends." *Morales*, 177 Ill. 2d at 460-61. We find similarly unreasonable the State's proposal, in the instant case, that every person observed in "sudden and unprovoked flight" from an officer may be stopped regardless of whether the surrounding circumstances indicate the person is involved in criminal activity. Cf. *People v. Holdman*, 73 Ill. 2d 213 (1978) (defendants' flight following officers' shining bright light into vehicle they reasonably believed to be associated with fugitive for whom they had warrant was indication of criminal activity requiring police pursuit). As defendant suggests, "[i]f the police cannot constitutionally force otherwise law-abiding citizens to move, the police cannot force those same citizens to stand still at the appearance of an officer." Therefore, because we agree with the majority of courts that view the unequivocal flight of a suspect upon seeing police as not alone indicative of criminal activity, we now examine the record herein to determine if there are corroborating circumstances sufficient to create the reasonable suspicion necessary for the stop of defendant.

The case before us is factually similar to *People v. Mamon*, 173 Mich. App. 429, 435 N.W.2d 12 (1988), rev'd on other grounds, 435 Mich. 1, 457 N.W.2d 623 (1990). There, two police officers were driving on routine patrol in a marked squad car through an area known for narcotics activity. As the officers approached the defendant, Mamon, standing on a corner near a

public phone, he took off running. The officers pursued the defendant on foot, noticing that he removed a case from his pocket and dropped it during the chase. The officers ultimately caught the defendant and retrieved the case, which contained cocaine. The trial court quashed an information charging the defendant with possession of a controlled substance, and the State appealed.

The Michigan appeals court affirmed the trial court's decision, first addressing the circumstances existing before the defendant began to run. Though the incident occurred in a high-crime neighborhood, the court determined that a person's presence in such an area cannot, by itself, provide the basis for an investigatory stop. In so doing, the court noted that the officers were not responding to a particular complaint of wrongdoing in the area and that the defendant made no furtive gestures prior to seeing the officers. Concluding that the officers lacked an articulable basis for stopping the defendant as he stood on the corner, the court turned to the significance of his flight upon their approach. Noting the ambiguous nature of flight as an indicator of guilt, the court held that the act of running at the sight of police patrolling a high-crime area did not provide the particularized grounds necessary to support a reasonable suspicion that criminal activity was afoot. *Mamon*, 173 Mich. App. at 435-38, 435 N.W.2d at 14-16.

Here, similar to *Mamon*, Officers Nolan and Harvey were "caravaning" with several other police vehicles when the incident occurred. They were not responding to any call or report of suspicious activity in the area. Though Officer Nolan testified that that area of the

11th District is known for "high narcotics traffic," we agree with our appellate court's opinion in *Harper*, 237 Ill. App. 3d at 205-06, and the numerous decisions from other jurisdictions, holding that a person's presence in such an area by itself does not warrant a suspicion that that person is involved in crime. See *Brown v. Texas*, 443 U.S. 47, 61 L. Ed. 2d 357, 99 S. Ct. 2637 (1979); *Hicks*, 241 Neb. at 366, 488 N.W.2d at 365; *Shabaz*, 424 Mich. at 60, 378 N.W.2d at 459; see also *In re D.J.*, 532 A.2d 138, 143 (D.C. App. 1987) (innocent activities do not become sinister by the mere fact that they take place in a high-crime area).

It is also clear that defendant herein gave no outward indication of involvement in illicit activity prior to the approach of Officer Nolan's vehicle. Defendant was simply standing in front of a building when the officers drove by. As in *Mamon*, the officers lacked an articulable basis for suspecting defendant of involvement in criminal activity prior to the point at which he turned and ran.

In *Fox*, the Illinois case which most closely approximates the issue presented herein, the appellate court foreshadowed our concerns, stating:

> "At the time of the stop, the investigating officers were aware that 'partying and littering' had recently occurred in the * * * area and also that the vehicle in which the defendant was riding as a passenger exited the area at a speed which one officer believed to be unreasonable upon the approach of a squad car. But, the officers testifying on behalf of the State did not relate that *any additional suspicious or unusual activities* that would have alerted the police to

the possibility of criminality were carried on by the occupants of the automobile. * * *

* * *

In short, the evidence adduced in this case does not support the State's contention that the police were aware of specific and articulable facts to justify the stop here. Rather, the evidence suggests that the police officers were operating under a suspicion or hunch that the vehicle contained someone who had committed or was about to commit a crime." (Emphasis added.) *Fox*, 97 Ill. App. 3d at 63-64.

Here, as in *Fox*, in the absence of circumstances corroborating the conclusion that defendant was involved in criminal activity, Officer Nolan's testimony reveals nothing more than a hunch.

As our brethren on the Supreme Court of Colorado have so aptly stated:

"We are aware that the weighty social objective of crime prevention might well be served by permitting stops and detentions without any requirement of a reasonable suspicion that criminal activity has occurred or is about to take place. In the absence of specific and articulable facts supporting the reasonable suspicion, however, 'the balance between the public interest and [defendant's] right to personal security and privacy tilts in favor of freedom from police interference.' *Brown v. Texas*, [443 U.S.] at 52, 99 S. Ct. at 2641, 61 L. Ed. 2d at 363." *Thomas*, 660 P.2d at 1277.

Where, as here, the police stop is not based upon objective criteria pointing to a reasonable suspicion of criminal activity, "the risk of arbitrary and abusive

police practices exceeds tolerable limits." *Brown v. Texas*, 443 U.S. at 52, 61 L. Ed. 2d at 363, 99 S. Ct. at 2641.

Therefore, because Officer Nolan was not able to point to specific facts corroborating the inference of guilt gleaned from defendant's flight, his stop and subsequent arrest of defendant were constitutionally infirm. U.S. Const., amend. IV; Ill. Const 1970, art. I, §6. The appellate court, therefore, properly reversed the trial court's denial of defendant's motion to suppress evidence. The weapon that was the basis for defendant's conviction should have been suppressed as the product of the unconstitutional seizure of his person. *Wong Sun v. United States*, 371 U.S. 471, 488, 9 L. Ed. 2d 441, 455, 83 S. Ct. 407, 417 (1963).

For the foregoing reasons, the judgment of the appellate court, reversing the judgment of the circuit court, is affirmed.

Appellate court judgment affirmed.

Opinion of The Appellate Court of Illinois
First District, Second Division
No. 1-96-0094, Filed March 18, 1997

PEOPLE OF THE STATE OF ILLINOIS,	)	Appeal from the Circuit Court of Cook County
Plaintiff-Appellee,	)	No. 95 CR 26952
v.	)	The Honorable Fred Suria, Judge Presiding
SAM WARDLOW,	)	
Defendant-Appellant.	)	

JUSTICE DiVITO delivered the opinion of the court:

Following a bench trial, defendant Sam Wardlow was found guilty of unlawful use of a weapon by a felon and was sentenced to two years' imprisonment. The sole issue in this appeal is whether the circuit court erred in denying defendant's motion to suppress the gun that was seized from him during an investigatory stop. For the reasons that follow, we conclude that defendant's motion to suppress should have been granted and we reverse his conviction.

At the hearing on defendant's motion to suppress, Officer Timothy Nolan testified that on September 9, 1995, he and his partner, Officer Harvey, were assigned to the special operations section of the Chicago police department. They were among eight officers in four cars who were driving eastbound on West Van Buren. Officer Nolan's car was last in the line of vehicles driving in the area. Although Officer Nolan could not recall whether his car was marked, he and his partner were in uniform. There was no evidence concerning

whether any of the other cars were marked or concerning the clothing of the other officers.

The cars were "caravaning" eastbound down Van Buren, when Officer Nolan observed defendant, who was not violating any laws, standing near the front of 4035 West Van Buren Street. Defendant looked in the officers' direction, then fled. Holding a white bag under his arm, he ran through a gangway and then through an alley. Officer Nolan drove south, observing defendant as he ran. Near 4036 West Congress, defendant ran towards him.

Officer Nolan exited his car and stopped defendant. Without announcing his office or asking any questions, he conducted a protective pat-down search of defendant. He could not see inside the plastic bag that defendant was carrying. He patted the outside of the bag and "felt a hard object that had a similar shape to a revolver or a gun." Officer Nolan believed the object, which was very heavy, to be a weapon. He looked inside the bag and found a .38-caliber handgun containing five live rounds of ammunition. He then placed defendant under arrest.

Officer Nolan testified that he and the other officers had gone to the area because it was "one of the areas in the 11th District that's high narcotics traffic." Based upon his experience with investigation of areas in which narcotics are sold, Officer Nolan knew that it was common to find weapons in the vicinity of such areas.

The police report indicated that defendant, who was 44 years old, was arrested at 12:15 p.m.

The circuit court denied the motion to suppress. A stipulated bench trial followed, and defendant was

found guilty of unlawful use of a weapon by a felon and was sentenced to a two-year term of imprisonment.

In this appeal, defendant contends that the circuit court erred in denying his motion to suppress because his presence in a high crime area and flight from the police officers were insufficient to justify his investigatory stop. We note that although no Illinois court has considered whether sudden flight from police officers in a high crime area justifies a stop, other jurisdictions are divided on the question. Compare *Harris v. State*, 205 Ga. App. 813, 423 S.E.2d 723 (1992), and *State v. White*, 660 So. 2d 515 (La. Ct. App. 1995) (flight from police officers in high crime area justifies investigatory stop), with *People v. Holmes*, 81 N.Y.2d 1056, 619 N.E.2d 396, 601 N.Y.S.2d 459 (1993), *affirmed*, 89 N.Y.2d 838 (1996), *Hopkins v. State*, 661 So. 2d 774 (Ala. Crim. App. 1994), *Britt v. State*, 673 So. 2d 934 (Fla. App. 1996), and *State v. Hicks*, 241 Neb. 357, 488 N.W.2d 359 (1992) (flight from police officers in high crime area does not justify stop).

Where, as here, there is no challenge to the facts or the credibility of the witnesses, we review a motion to suppress *de novo*. *People v. Foskey*, 136 Ill. 2d 66, 76, 554 N.E.2d 192 (1990); *Ornelas v. United States*, 517 U.S. 690, 700, 134 L. Ed. 2d 911, 920, 116 S. Ct. 1657, 1663 (1996).

Under *Terry v. Ohio*, 392 U.S. 1, 20 L. Ed. 2d 889, 88 S. Ct. 1868 (1968) (codified at 725 ILCS 5/107-14 (West 1994)), a police officer may stop and detain a person for temporary questioning if the officer reasonably infers from the situation that the person is committing, is about to commit, or has committed a crime. *Terry*, 392 U.S. at 22, 20 L. Ed. 2d at 906-07, 88 S. Ct. at 1880. To justify an investigatory stop, the police officer must be

able to point to specific and articulable facts that reasonably warrant the intrusion. *Terry*, 392 U.S. at 21, 20 L. Ed. 2d at 906, 88 S. Ct. at 1880. In determining whether a stop is reasonable, the court employs an objective standard: would an officer of reasonable caution, knowing the facts available at the time of the stop, believe the action was appropriate? *People v. Rivera*, 272 Ill. App. 3d 502, 504-05, 650 N.E.2d 1084 (1995), *appeal denied*, 164 Ill. 2d 577, 660 N.E.2d 1277 (1995).

In Illinois, neither a person's mere presence in an area where drugs are sold (*People v. Harper*, 237 Ill. App. 3d 202, 205, 603 N.E.2d 115 (1992)) nor sudden flight (*People v. Rivera*, 233 Ill. App. 3d 69, 77, 598 N.E.2d 423 (1992)) alone will justify a *Terry* stop. Past criminal activity in an area (*People v. Hunt*, 188 Ill. App. 3d 359, 362, 544 N.E.2d 118 (1989), *appeal denied*, 128 Ill. 2d 668, 548 N.E.2d 1074 (1989)) and flight (*Rivera*, 233 Ill. App. 3d at 77), however, are relevant factors to be considered in determining whether circumstances justify an investigatory stop.

For example, in *People v. Rivera*, 233 Ill. App. 3d 69, 76-77, 598 N.E.2d 423 (1992), police officers entered the defendant's bar, having received information that cocaine was stored in the basement and the defendant was involved in its sale and distribution. According to the testimony of the police officers, the defendant appeared frightened and fled when they entered the bar. *Rivera*, 233 Ill. App. 3d at 77. The court found that the flight of defendant, combined with the information known to the officers, provided the requisite reasonable suspicion. *Rivera*, 233 Ill. App. 3d at 77.

From the record before us, we cannot discern the precise location of the area known by the officers to have

a high incidence of narcotics trafficking. After he testified that he noticed defendant at 4035 West Van Buren, Officer Nolan was asked why he went to that area. He responded that it was one of the areas in the 11th District that had "high narcotics traffic." His testimony indicates only that the officers were headed somewhere in the general area. There was no evidence that the officers were investigating the specific area where defendant had been standing or that any of the police cars had stopped at that location or that defendant had any basis for believing that police were interested in his activity.

Officer Nolan testified that he was "caravaning" down West Van Buren when he noticed defendant. He did not testify that the officers were targeting 4035 West Van Buren because it was known to be a location where drugs were sold. From the evidence elicited at the hearing on the motion to suppress, it appears that the officers were simply driving by, on their way to some unidentified location, when they noticed defendant standing at 4035 West Van Buren. The record here is simply too vague to support the inference that defendant was in a location with a high incidence of narcotics trafficking or, for that matter, that defendant's flight was related to his expectation of police focus on him.

Because we find no support in the record for the contention that defendant was in a high crime location, we are left only with the fact of his sudden flight from an area past which police officers were driving. That circumstance alone does not satisfy the requirements for a lawful investigatory stop. *Rivera*, 233 Ill. App. 3d at 77. Accordingly, the circuit court erred in denying defendant's motion to suppress.

We emphasize the limited nature of our holding. Because we recognize the importance of the police interest in investigating crime, we do not hold that the presence of a suspect in a high crime location, together with his subsequent flight from police, is never grounds for a *Terry* stop. Certainly, a "high crime area is a place in which the character of the area gives color to conduct which might not otherwise raise the suspicion of an officer." *White*, 660 So. 2d at 519. To pass constitutional muster, however, the high crime area should be a sufficiently localized and identifiable location. This limitation is necessary to "assure that an individual's reasonable expectation of privacy is not subject to arbitrary invasions solely at the unfettered discretion of officers in the field," simply because he or she happens to live in a neighborhood where crime is prevalent. *Brown v. Texas*, 443 U.S. 47, 51, 61 L. Ed. 2d 357, 362, 99 S. Ct. 2637, 2640 (1979).

Accordingly, the weapon that was the basis for defendant's conviction should have been suppressed because it was discovered as a result of an unjustified investigative stop. *Wong Sun v. United States*, 371 U.S. 471, 488, 9 L. Ed. 2d 441, 455, 83 S. Ct. 407, 417 (1963). Rather than remanding, we reverse defendant's conviction outright because the State will not be able to prevail without the recovered evidence. *People v. Evans*, 259 Ill. App. 3d 650, 659, 631 N.E.2d 872 (1994).

The judgment of the circuit court is reversed.

Reversed.

RAKOWSKI and McNULTY JJ., concur.

OFFICE OF THE CLERK
SUPREME COURT OF THE UNITED STATES
WASHINGTON, D.C. 20543-0001

May 3, 1999

Renee G. Goldfarb, Esq.
Assistant State's Attorney
309 Richard J. Daley Center
Chicago, Illinois 60602

Re: 98-1036 – Illinois v. Wardlow, William AKA Sam

Dear Ms. Goldfarb:

The Court today entered the following order in the above case:

> "The motion of respondent for leave to proceed in forma pauperis is granted. The petition for writ of certiorari is granted."

Enclosed are Memoranda describing the procedures under the Rules, together with a Specification Chart for your use. To further assist you in preparing your case before this Court, a copy of the Guide for Counsel is enclosed. Although this case will not be scheduled for oral argument this Term please note that requests for extensions of time to file briefs on the merits **are not** favored.

If you have any questions, please contact me.

Sincerely,

WILLIAM K. SUTER, CLERK

Denise J. McNerney
Assistant Clerk-Merits Cases
(202) 479-3032

Enclosures